

25CHCV01684 25CHCV01684

County: los-angeles

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DEMURRER TO
COMPLAINT

Motion filed on October 23, 2025.

MOVING PARTY: Defendants Evan Christopher Manjikian and Lucy
Manjikian

RESPONDING PARTY: Plaintiffs Adriana Ruelas, Jasmine
Gutierrez, and Cuauhuctemoc Gutierrez

NOTICE: OK.

RELIEF REQUESTED: Defendants demur to Plaintiffs' Complaint
based on the statute of limitations.

RULING: Overruled.

BACKGROUND.

On May 14, 2025, Plaintiffs Adriana Ruelas, Jasmine
Gutierrez, and Cuauhuctemoc Gutierrez filed a form Complaint against Defendants

Evan Christopher Manjikian and Lucy Manjikian asserting a motor vehicle cause of action. Defendants filed this demurrer on October 23, 2025, supported by the declaration of Marie-Anne Zakarian, and a request for judicial notice. Plaintiffs opposed on January 6, 2026, supported by the declaration of Mark V. Brajnikoff and exhibits. Defendants filed a reply on June 18, 2026. Although Defendants' reply was untimely under CCP section 1005(b), the Court has exercised its discretion to consider the reply in reaching its ruling.

REQUEST FOR JUDICIAL NOTICE

Defendants' request for judicial notice of the Complaint is granted as to the existence, contents, and filing date of the Complaint. Plaintiffs' request for judicial notice of the Court's e-filing rejection and acceptance notices is granted as to the existence and contents of those records. (Evid. Code, § 452, subd. (d).)

DISCUSSION

Defendants demur to the Complaint on the grounds that it fails to state facts sufficient to constitute a cause of action because it is barred by the statute of limitations, and is uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).)

A demurrer should be sustained where "the complaint shows on its face that the statute [of limitations] bars the action." (E-Fab, Inc. v. Accountants, Inc. Services, (2007) 153 Cal.App.4th 1308, 1315.) "[T]he defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred." (Id. at p. 1316.) The court must determine which statute of limitations applies and when the claim accrued. (Ibid.)

Code of Civil Procedure section 335.1 provides that an action for "injury to, or for the death of, an individual caused by the wrongful act or neglect of another" must be brought within two years. Code of Civil Procedure section 1010.6, subdivision (e)(4)(E) provides: "If the clerk of the court does not file a complaint or cross complaint because the complaint or cross complaint does not comply with applicable filing requirements or the required filing fee has not been paid, any statute of limitations applicable to the causes of action alleged in the complaint or cross complaint shall be tolled for the period beginning on the date on which the court received the

document and as shown on the confirmation of receipt described in subparagraph (A), through the later of either the date on which the clerk of the court sent the notice of rejection described in subparagraph (C) or the date on which the electronic filing service provider or electronic filing manager sent the notice of rejection as described in subparagraph (D), plus one additional day if the complaint or cross complaint is subsequently submitted in a form that corrects the errors which caused the document to be rejected. The party filing the complaint or cross complaint shall not make any change to the complaint or cross complaint other than those required to correct the errors which caused the document to be rejected."

Here, the Complaint alleges a May 13, 2023 motor vehicle incident. The two-year limitations period under Code of Civil Procedure section 335.1 therefore expired on May 13, 2025. The Complaint was file-stamped May 14, 2025. Without statutory tolling, the personal injury claim would be time barred.

Plaintiffs submit evidence that they attempted to file the summons, Complaint, and civil cover sheet before the limitations period expired. Brajnikoff states he electronically transmitted those documents to One Legal on May 10, 2025 at 4:00 p.m., and that the documents identified the North Valley Judicial District and the Chatsworth Courthouse address. (Brajnikoff Decl. ¶¶ 6-7.) The rejection notices then repeatedly rejected the filing for court-location reasons. The May 13, 2025 rejection at 1:38 p.m. stated that, based on the address provided, the case should be filed at the Chatsworth Courthouse. (Id. ¶ 12, Ex. 3, pp. 0032-0034.) The May 13, 2025 rejection at 5:49 p.m. stated that, based on the address listed on the addendum, the complaint needed to be filed at the Chatsworth courthouse. (Id. ¶ 12, Ex. 3, pp. 0035-0037.) The May 14, 2025 rejection at 11:30 a.m. stated "Incorrect Court District/Court Location" and again stated that the case should be filed at the Chatsworth Courthouse. (Id. ¶ 12, Ex. 3, pp. 0038-0040.) Plaintiffs then submitted the filing on May 14, 2025 at 3:07 p.m., with a message stating that the case was being filed in the Chatsworth Court and that "the court's computer indicates wrongly that it is being filed in Stanley Mosk." The Court accepted the filing at 4:27 p.m. (Id. ¶ 12, Ex. 3, pp. 0041-0042.)

Under section 1010.6, subdivision (e)(4)(E), the relevant filing date is not limited to the May 14, 2025 file-stamp. Plaintiffs submitted a filing on May 13, 2025, before the limitations period expired, and the filing was rejected on May 14, 2025 for court-location reasons. (Brajnikoff Decl. ¶ 12, Ex. 3, pp. 0038-0040.) The statute tolled the limitations period from the

Court's receipt of that May 13 submission through the May 14 rejection notice, plus one additional day, if the resubmission corrected the stated filing defect and made no other change to the Complaint. Plaintiffs submitted the accepted filing on May 14, 2025 at 3:07 p.m., within that statutory period. (Id. ¶ 12, Ex. 3, pp. 0041-0042.) On this record, the statute of limitations bar does not clearly and affirmatively appear from the face of the Complaint or judicially noticed records.

Defendants also demurred under Code of Civil Procedure section 430.10, subdivision (f), but do not develop a separate uncertainty argument. The Complaint identifies the parties, the motor vehicle cause of action, the incident date, the incident location, and the categories of damages claimed. (Complaint at pp. 1-4.) The demurrer is overruled on uncertainty grounds.

CONCLUSION

The demurrer is overruled. Defendants shall answer the Complaint within 10 days.